MALAWI GOVERNMENT

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Act

No. 29 of 2025

I assent

DR. LAZARUS MCCARTHY CHAKWERA
PRESIDENT
20th June, 2025

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SCHEDULES

An Act to provide for the development, marketing, and regulation of tourism industry in Malawi, establishment of the Malawi Tourism Authority, establishment of the Malawi College of Tourism and matters incidental thereto.

ENACTED by the Parliament of Malawi as follows—

PART I—PRELIMINARY

Short title and commencement

1. This Act may be cited as the Tourism Act, 2025, and shall come into force on a date to be appointed by the Minister by notice published in the *Gazette*.

Interpretation

2. In this Act, unless the context otherwise requires—

"College" means the Malawi College of Tourism established under section 50;

"Council" means the Council of the College established under section 52;

"Director General" means the Director General of the Malawi Tourism Authority, appointed pursuant to section 18;

"hospitality service" means the business of providing services to guests in hotels, restaurants, bars and any other facility that the Minister may from time to time designate;

"tourism sector" means the part of the economy involved in the provision of tourism and hospitality services;

"tourism industry" means the combined activities, commercial developments, events, services, and businesses related to tourism;

"tourism enterprise" means any person that conducts an activity in the tourism sector or operates a tourism establishment or provides a tourism service;

"tourism establishment" means any place, facility or premises where a hospitality service is being provided;

"tourism practitioner" means a person licensed under section 30;

"tourism service" means any service, event, or practice in the tourism industry and includes a hospitality service;

"tourist" means a person travelling to and staying in a place outside his or her usual abode for more than twenty-four hours, but not more than one year, for leisure, business, or other purposes, not being a work-related activity remunerated from within the place visited, including if such person's usual abode is within the Republic of Malawi; and

"vessel" means any medium used to transport tourists, and may include, vehicles, hot air balloons, ships, boats, aircrafts.

Part II—The Malawi Tourism Authority

Establishment of the Authority

3.—(1) There is hereby established a body known as the Malawi Tourism Authority (in this Act otherwise referred to as the "Authority") which shall be a body corporate with perpetual succession and a common seal and shall be capable, by that name, of—

(*a*) doing or performing all such acts as may be necessary or expedient for the furtherance of the provisions of this Act; and

(*b*) subject to this Act, doing or performing all acts as a body corporate may, by law, do or perform or such acts as are incidental or appertain to a body corporate.

(2) The Authority shall in the exercise of its powers and the performance of its duties, under this Act or any other written law, be subject to the general or special directions of the Minister.

Functions of the Authority

4.—(1) The Authority shall be responsible for regulation of the tourism industry and marketing Malawi internationally and locally as a tourism destination.

(2) Without derogating from the generality of subsection (1), the Authority shall—

(*a*) promote Malawi as a tourism destination in domestic and international markets;

(*b*) implement and coordinate national tourism marketing strategies;

(*c*) conduct tourism marketing research;

(*d*) enforce standards for all tourism enterprises, tourism establishments and tourism practitioners;

(*e*) licence tourism practitioners, tourism enterprises, and tourism establishments;

(*f*) maintain a register of all tourism practitioners, tourism enterprises, and tourism establishments;

(*g*) register, grade, and classify all designated tourism enterprises and establishments;

(*h*) receive and investigate complaints relating to tourism and hospitality services and take the necessary action;

(*i*) ensure the safety of tourists, tourism enterprises, tourism establishments and tourism services;

(*j*) enforce public health laws and environmental laws, and other relevant laws in the tourism sector in consultation with relevant authorities;

(*k*) promote the highest standards of professional ethics and business conduct of tourism practitioners in the tourism sector;

(*l*) prevent and investigate violations of this Act in consultation with relevant authorities; and

(*m*) do all such things as are necessary, incidental, or conducive to the implementation of the functions of the Authority.

Powers of the Authority

5. The Authority shall, in the discharge of its functions, have the power to—

(*a*) grant, revoke, suspend, vary, cancel, classify, or reclassify licences and grade tourism practitioners, tourism enterprises, and tourism establishments;

(*b*) carry out or cause to be carried out, such inspections of documents, structures or vessels, for purposes of issuing a licence

or determining compliance with licensing conditions in accordance with this Act;

(*c*) inspect tourism enterprises and tourism establishments for purposes of compliance to the standards;

(*d*) collect fees, levies, charges, and penalties from tourism practitioners, tourism enterprises, and tourism establishments;

(*e*) impose administrative penalties, including monetory penalties, on tourism enterprises and tourism practitioners for contraventions of this Act;

(*f*) receive grants or donations from other sources;

(*g*) enforce guidelines for tourism practitioners, tourism enterprises and tourism establishments;

(*h*) implement all tourism sector licensing activities; and

(*i*) promote international and domestic tourism.

Composition of the Authority

6.—(1) The Authority shall consist of eleven members who shall be citizens of Malaŵi comprising—

(*a*) seven members appointed by the Minister—

(i) one person with qualification and experience in hospitality services;

(ii) one person with qualification and experience in tourism or business management related field other than hospitality services;

(iii) one person with qualification and experience in public health;

(iv) one person with experience in tourism training;

(v) one person who is a legal practitioner with valid practitising licence in accordance with Legal Education and Legal Practitioners Act; Cap. 3:04

(vi) a marketing expert; and

(vii) an accountant registered under the Public Accountants and Auditors Act; and Cap. 53:06

(*b*) the following *ex-officio* members or their representatives—

(i) the Secretary responsible for tourism;

(ii) the Secretary to the Treasury;

(iii) the Secretary responsible for industry; and

(iv) the Secretary responsible for local government.

(2) The Minister shall appoint a Chairperson from one of the members appointed under subsection (1) (*a*).

(3) A member of the Authority shall not, only by reason of his or her appointment as a member, be deemed to be an employee in public service.

(4) The Minister shall, in making appointments under subsection (1) (*a*)—

Cap. 25:06
No. 4 of 2024

(*a*) take into account the provision of the Gender Equality Act and the People with Disabilities Act; and

(*b*) have regard to the need for continuity in the membership of the Authority so that at least three of the appointed members of the immediate past Authority shall be retained.

Disqualification from membership

7. A person shall be disqualified from appointment as a member of the Authority under section 6 (1) (*a*) if the person—

(*a*) ceases being a citizen or resident of Malawi;

(*b*) has, within the last seven years, been convicted of an offence punishable with imprisonment without an option of a fine;

(*c*) holds a political office;

(*d*) is an officer, member, or employee of a public institution;

(*e*) is a minor;

(*f*) has been declared bankrupt;

(*g*) has a certified medical or physical condition that makes the person incapable of performing the functions of a member; or

(*h*) would, for any other reason, be disqualified by law from serving as a trustee or director of a company.

Tenure of office

8. A member, appointed under section 6 (1) (*a*), shall hold office for a term of three years and shall be eligible for reappointment for one further term of three years.

Vacancies

9.—(1) The office of a member of the Authority appointed under section 6 (1) (*a*), shall become vacant—

(*a*) on the expiry of the term of office of the member;

(*b*) where the member—

(i) resigns;

(ii) dies;

(iii) is declared bankrupt;

(iv) is convicted of an offence which is punishable with imprisonment without an option of a fine;

(v) is absent, without a valid reason, from three consecutive meetings of the Authority of which the member has had notice;

(vi) leaves the country for a continuous period exceeding six months;

(vii) is certified by a medical practitioner to be incapacitated from carrying out the functions of his office as a member by reason of physical or mental illness;

(viii) fails to declare a conflict of interest relating to any matter under consideration by the Authority;

(ix) is removed by the Minister in accordance with subsection (3); or

(x) is removed from a position of trust by a court of law; or

(*c*) where a situation arises, that, if he or she had not been appointed a member of the Authority, he or she would have been disqualified from the appointment.

(2) A member appointed under section 6 (1) (*a*), may resign from office at any time by giving written notice to the Minister.

(3) The Minister may remove a member appointed under section 6 (1) (*a*) from office, if the member—

(*a*) fails to comply with his or her obligations under this Act;

(*b*) commits misconduct that brings the office of the member into disrepute;

(*c*) is incompetent in the execution of the function of the office;

(*d*) is compromised to the extent that his or her ability to impartially and effectively exercise the duties of his or her office is seriously in question;

(*e*) is not able to perform the functions of his or her office by reason of mental or physical infirmity certified by a medical practitioner; or

(*f*) is declared or adjudged bankrupt by a competent court of law.

(4) The Minister shall, before removing a member from the office under subsection (3), conduct due inquiry.

Filling of vacancies

10.—(1) In the event of a vacancy in the membership of the Authority, the Minister shall appoint a new member to fill the vacancy in accordance with section 6 (1) (*a*).

(2) A person appointed to fill a vacancy shall serve for the remainder of a term of office, but no person may be appointed to fill a vacancy of the remainder of a term of office where the remainder of the term is less than six months.

(3) The period served by a person appointed under subsection (1) shall not be regarded as a term for purposes of section 8.

Co-opted persons

11.—(1) The Authority may, taking into account nature of a matter to be deliberated, co-opt any person to attend a meeting of the Authority or of its committee, for the purpose of assisting or advising the Authority in respect of the matter under consideration by the Authority.

(2) A person co-opted pursuant to subsection (1) may take part in the deliberations of the Authority or of the committee but shall not be entitled to vote.

Meetings of the Authority

12.—(1) The Authority shall meet for the transaction of its business at least once in every three months at a place and a time as the Chairperson shall determine after consulting the Director General.

(2) The Chairperson shall convene ordinary meetings of the Authority by giving the members at least fourteen days' written notice.

(3) The Chairperson may, on his or her own motion, convene an extraordinary meeting of the Authority by giving at least three days written notice of the meeting which shall be held at a place and time as the Chairperson may, in consultation with the Director General, determine.

(4) The Chairperson shall convene an extraordinary meeting within seven days of receipt of a request, in writing, signed by not less than six members specifying the purpose for which the meeting is to be convened.

(5) The quorum at every meeting of the Authority shall be constituted by six members.

(6) The Chairperson shall preside over all meetings of the Authority, and in the absence of the Chairperson, the members present and forming a quorum shall elect one of their number to preside over the meeting.

(7) A decision of the Authority on any question shall be made by consensus but, where consensus is not possible, the decision shall be determined by a majority vote of members present and voting and, where there is an equality of votes, the Chairperson or, in the absence of the Chairperson, other member presiding, shall have a casting vote in addition to that person's deliberative vote.

(8) The proceedings of the Authority shall not be invalidated by reason of a vacancy among the members or a defect in the appointment or qualification of a member.

(9) A member of the Authority or a committee of the Authority appointed under section 6 (1) (*a*), shall not attend a meeting of the Authority by proxy and, where the member is unable to attend any meeting of the Authority, he or she may request that an apology for failure to attend be recorded.

(10) The Director General shall record and keep minutes of meetings of the Authority and the minutes shall be confirmed at the subsequent meeting. The Director General may delegate this function to any other person.

(11) The Authority shall determine its own procedure for meetings and may make rules to regulate its proceedings and business or the proceedings and business of any of its committees.

(12) A decision of the Authority that affects a stakeholder in the tourism sector shall be communicated to the stakeholder in writing and shall state the reasons for the decision.

Committees of the Authority

13.—(1) The Authority shall, for the purpose of performing its functions under this Act, establish committees as it considers necessary for implementing the powers and functions of the Authority under this Act.

(2) The Authority may delegate some of its functions as it considers fit, to any committee established under subsection (1).

Allowances for members of the Authority

14.—(1) A member of the Authority or a member of a committee of the Authority shall be paid such allowance, from the funds of the Authority, as the Minister shall determine, on the recommendation of the Government department responsible for human resource management and development.

(2) The Authority may reimburse any reasonable expenses incurred in connection with the business of the Authority by a member of the Authority, a member of a committee of the Authority or a person invited to attend a meeting under section 11.

Delegation of powers

15. The Authority may delegate, in writing, some of its functions to a member or any person, to act on its behalf.

Cooperation with other bodies

16. The Authority shall, in the performance of its functions and exercise of its powers, foster collaboration with other Government Ministries, Departments and Agencies, and other international institutions whose mandates interface with the mandate of the Authority.

Part III—Administration

Secretariat of the Authority

17. There shall be a secretariat of the Authority consisting of the Director General and other members of staff appointed in accordance with this Act.

Director General

18.—(1) The Authority shall appoint a Director General who shall be responsible for the administrative control of, and supervision over, the work of the Authority.

(2) The Director General shall be appointed through a competitive process and on such terms and conditions as the Authority shall determine after consulting the Government department responsible for human resource management and development.

(3) A person shall not be appointed a Director General unless the person—

(*a*) possesses a minimum qualification of a Master's degree in a field of tourism, hospitality, business management, economics, marketing, or any other qualifications relevant to the mandate of the Authority, obtained from an institution accredited or recognized under the National Council for Higher Education Act, obtained subsequent to a bachelor's degree from a reputable institution accredited or recognized under the National Council for Higher Education Act;

Cap. 30:12

Cap. 30:12

(*b*) has a minimun of ten years of experience, in the tourism, travel, and hospitality sector;

(*c*) has a minimum of five years' of experience at executive management level;

(*d*) is not a holder of a political office; and

(*e*) has not, within the last seven years, been convicted of an offence punishable with imprisonment without an option of a fine.

Duties and responsibilities of the Director General

19.—(1) Subject to the general and special directions of the Authority, the Director General shall be responsible for—

(*a*) the day-to-day administration and management of the affairs of the Authority;

(*b*) provision of secretarial services to the Authority;

(*c*) the management of the funds, property, and business of the Authority;

(*d*) the effective administration and implementation of the provisions of this Act; and

(*e*) the appointment, promotion, training, and disciplining of the officers and staff of the Authority below the grade of director, subject to the determination of their terms and conditions of appointment by the Authority.

(2) The Director General shall devote his or her full time to the duties of his or her office and shall provide the Authority with all the information, data, statistics, documents and other materials pertinent to the efficient performance by the Authority of its functions and responsibilities under this Act or any other written law.

(3) The Director General shall attend meetings of the Authority and may address the meetings but shall not have power to vote on any matter.

(4) The Authority may, in writing, delegate to the Director General any of its functions under this Act.

Tenure of the Director General

20.—(1) The Director General shall hold office for a term of three years and shall, subject to satisfactory performance, be eligible for re-appointment for a further term of three years.

(2) The Authority may terminate the appointment of the Director General on the following grounds—

(*a*) incompetence;

(*b*) inability to perform the functions of the office by reason of a mental or physical infirmity;

(*c*) conviction of an offence punishable with imprisonment without an option of a fine;

(*d*) involvement in a corrupt transaction;

(*e*) misconduct that brings the Authority into disrepute or punishable by dismissal under the employment contract;

(*f*) non-disclosure of interest relating to any matter under consideration by his or her office or the Authority;

(*g*) abuse of office; or

(*h*) undischarged bankruptcy.

(3) The Authority shall not remove a Director General from office unless the Director General is given an opportunity to be heard.

(4) The Authority may suspend the Director General from exercising the functions of his office for up to sixty days pending investigations to determine whether or not he or she should be removed from office.

(5) Where the Director General is suspended or dismissed, the Authority shall appoint the next most senior officer to act as Director General for a period of not more than one year.

Other staff of the Authority

21.—(1) The Authority may appoint such other staff, subordinate to the Director General, through an open and competitive process on such terms and conditions as it may consider appropriate and based on qualifications, experience, and capacity relevant to the functions of the Authority.

(2) The Authority may delegate to the Director General the appointment, discipline and dismissal of members of staff in specified junior ranks and the Director General shall report to the authority, at its next meeting, every appointment, disciplinary decision or dismissal made pursuant to this subsection.

(3) The members of staff of the Authority appointed under subsection (1) shall be appointed on such terms and conditions as the Authority shall determine.

(4) Section 20 (2) shall apply, with the necessary modifications, to dismissal of members of staff employed under this section.

Seal of the Authority

22.—(1) The seal of the Authority shall be such device as may be determined by the Authority and shall be kept by the Director General.

(2) The affixing of the seal shall be authenticated by the Chairperson or his or her delegated member, on the one hand, and the Director General or any other person authorised on that behalf by a resolution of the Authority, on the other hand.

(3) Any contract or instrument which if entered into or executed by a person not being a body corporate, would not be required to be under seal, may be entered into or executed without seal on behalf of the Authority by the Director General or any other person generally or specifically authorised by the Authority on its behalf.

(4) Any document purporting to be a document under the seal of the Authority or issued on behalf of the Authority shall be received in evidence and shall be deemed to be so executed or issued, as the case may be, without further proof, unless the contrary is proved.

PART IV—FUNDS AND PROPERTY OF THE AUTHORITY

Funds of the Authority

23.—(1) The funds of the Authority shall consist of—

(*a*) such money appropriated by Parliament;

(*b*) fees, levies, charges, dues, rates, fines and penalties payable under this Act;

(*c*) grants and donations received by the Authority for its activities;

(*d*) income derived from the investment of the funds of the Authority; or

(*e*) any other income authorized under this Act or recognized as such by accounting standards and practices collected by the Authority.

(2) Subject to the provisions of the Public Finance Management Act— No 4 of 2022

(*a*) the Authority may borrow such sums of money as it may require for the performance of its functions under this Act; and

(*b*) all the monies of the Authority which, at the end of each financial year, are in excess of the Authority's budgetary requirements for that year, shall be paid into the Consolidated Fund.

Accounts and audit Cap. 37:01 No. 4 of 2022

24.—(1) The Authority shall keep proper accounts and other records in respect of its funds and shall, in every respect, comply with the provisions of the Public Finance Management Act and the Public Audit Act.

(2) The accounts of the Authority shall be audited by the Auditor General or by independent professional auditors appointed by the Authority in accordance with the Public Audit Act and the expenses of the audit shall be paid out of the funds of the Authority. Cap. 37:01

Annual report

25.—(1) The Authority shall, within six months after the end of a financial year, submit to the Minister a report of the activities of the Authority in that financial year.

(2) The annual report shall include—

(*a*) audited financial statements;

(*b*) audit report; and

(*c*) such information as the Minister may require.

(3) The Minister shall, during the next meeting of Parliament following receipt by him or her of the report referred to in this section, lay the report before the Parliament.

Financial year

26.—(1) The financial year of the Authority shall be similar to the financial year of the Government.

(2) The first financial year of the Authority may be such shorter or longer period than twelve months as the Authority may determine but being not less than six months and not more than eighteen months.

Part V—Registration and Licensing of Tourism Practitioners, Tourism Enterprises and Tourism Establishments

Application for a licence

27.—(1) A person shall not—

(*a*) practise as a tourism practitioner in Malawi;

(*b*) operate a tourism enterprise in Malawi; or

(*c*) operate a tourism establishment in Malawi,

unless the person is licensed by the Authority in accordance with this Act.

(2) A person who intends to obtain a licence under subsection (1) shall apply to the Authority, in the prescribed manner, and shall pay the prescribed application fee.

(3) Where a person intends to operate a tourism establishment at more than one place, the person shall make separate applications for each premises.

(4) The Authority—

(*a*) may request an applicant to furnish any other information in relation to an application, within such period as it may determine; and

(*b*) shall, in the case of a tourism establishment, inspect the premises in respect of which an application is made before the issuance of the licence.

(5) The Authority may refuse to issue a licence where an applicant fails to submit the information requested by the Authority in subsection (4) (*a*).

Persons eligible to be licensed as tourism practitioners

Cap. 55:06
Cap 30:12

28. A person shall not be eligible to obtain a licence under this Act as a tourism practitioner unless the person—

(*a*) holds a Diploma in the field of tourism recognized by the Technical Entrepreneurial and Vocational Education and Training Act, and National Council for Higher Education Act; and

(*b*) satisfies the Authority through written and oral internship examinations that the person—

(i) has acquired sufficient knowledge of tourism, travel, or hospitality;

(ii) has an adequate knowledge of the English language; and

(iii) is, in all respects as to character and otherwise, a fit and proper person to be registered.

Categories of licences establishments

29. The Minister may, by notice published in the *Gazette*, prescribe categories of licences issued under section 28.

Issuance of a licence

30.—(1) The Authority shall, within thirty days of receipt of an application made under this Act, issue a licence if—

(*a*) the application meets the requirements of this Act;

(*b*) the premises to be used as a tourism establishment is suitable for operating a tourism establishment; and

(*c*) the activity or business to be carried out by the applicant does not contravene any written law.

(2) A licence issued under this section shall be subject to such terms and conditions as the Authority may determine.

Rejection of application

31.—(1) The Authority shall reject an application for a licence if—

(*a*) the application does not meet the requirements of this Act;

(*b*) the premises in respect of which an application for a tourism establishment licence is made do not comply with prescribed standards of tourism establishments; or

(*c*) the activity or business to be carried out by the applicant contravenes a written law.

(2) The Authority shall, where it rejects an application under subsection (1), inform the applicant of its decision in writing, and give the reasons for the rejection.

Appeals against decision of the Authority relating to licensing

32.—(1) A person aggrieved by a decision of the Authority under section 31 (2) may, twenty-one days of the decision, apply to the High Court, for review of the decision.

(2) A person who intends to appeal against decision of the Authority under subsection (1) shall file written notice of intention to the Authority.

Duration of licence

33.—(1) A licence issued under this Act shall be valid from 1st April to 31st March every year.

(2) Notwithstanding subsection (1), the Authority may issue a licence for a period shorter than the period provided under subsection (1).

Renewal of licence

34.—(1) A tourism practitioner, tourism enterprise or tourism establishment, licensed under this Act may, thirty days before expiry of the licence, make an application to the Authority for renewal of the licence.

(2) A licence renewed under this Act shall be valid from the time of renewal up to the end of the financial year.

(3) An application made under subsection (1) shall be made in a prescribed form and accompanied by a prescribed application fee.

(4) A tourism practitioner, tourism enterprise or tourism establishment, licensed under this Act shall, where an application for renewal of a licence is made after the period provided under subsection (1) pay administrative penalty.

(5) The Authority shall not renew a licence under subsection (1) if the applicant fails to satisfy the requirements prescribed under this Act.

(6) The Authority may not renew a licence if the licensee contravenes any provision of this Act, or any condition stipulated in the licence.

Transfer of licence

35. A tourism establishment licensed under this Act may, with the approval of the Authority, transfer its licence to any person who, in the opinion of the Authority, is of good standing and satisfies the Authority that he will be able to properly operate such tourism establishment.

Surrender of a licence

36.—(1) A tourism practitioner, tourism enterprise or tourism establishment, licensed under this Act may, after giving notice in writing to the Authority and within fourteen days of such notice, surrender the licence to the Authority.

(2) Where a tourism practitioner, tourism enterprise or tourism establishment, licensed under this Act surrenders the licence under subsection (1) the Authority shall cancel the licence.

Register of tourism practitioners, tourism enterprises and establishments

37.—(1) The Authority shall establish, maintain and update a register of tourism practitioners, tourism enterprises and tourism establishments licensed under this Act.

(2) The Director General shall be responsible, subject to any direction of the Authority, for maintaining and updating the register and ensuring that entries are made appropriately.

(3) The register maintained under subsection (1) shall include–

(*a*) names and particulars of the licensed persons;

(*b*) list and particulars of suspended or cancelled licences; and

(*c*) such other information as the Authority may determine.

Publication of list of licensed persons

38. The Authority shall, at least once every year, publish in the *Gazette* and in a newspaper of wide circulation list of tourism practitioners, tourism enterprises and tourism establishments, licensed under the Act.

Part VI—Inspections

Inspectors and inspections

39.—(1) The Authority shall, for the purpose of ensuring continuous compliance with the provisions of this Act and licence terms and conditions issued under this Act, conduct inspections on tourism enterprises and tourism establishments, licensed under this Act.

(2) The Authority may appoint a suitably qualified person to be an inspector of tourism enterprises and tourism establishments licensed under this Act.

(3) The Authority shall provide the inspector appointed under subsection (2) with identification card, in the prescribed form, which shall be *prima facie* evidence of the inspector's appointment.

(4) The inspector shall, in performing his or her functions under this Act—

(*a*) be in possession of the identification card issued under subsection (3); and

(*b*) show the identification card to any person who requests to see it or is subject to an inspection or investigation under this Act.

Entry, inspection and search, of premises

40.—(1) An inspector, or any person authorized by the the Authority, may at any reasonable time, enter, inspect and or search any premises including a tourism establishment, container, vessel, or other conveyance where a tourism service is being provided, and—

(*a*) inspect and search the premises, container, vessel, or other conveyance, or the premises of any person licensed under this Act, including a private dwelling house, where information or documents which may be relevant to an inspection may be kept;

(*b*) search any person on the premises if the inspector has reasonable grounds to believe that the person is in possession of any document, record, book, or article bearing on an investigation, except that a person shall only be searched by a person of the same sex;

(*c*) examine any document, record, book, or article, found on the premises that has a bearing on an inspection or investigation;

(*d*) require information to be given about any document, record, book, or article by—

(i) the owner of the premises;

(ii) the person in control of the premises;

(iii) any person who has control of the document, record, book, article; or

(iv) any other person who may have the information;

(*e*) seize any document, book, record, article, computer or other electronic storage device, that has a bearing on an inspection or investigation;

(*f*) take samples of any food, water, article, or material as may be necessary for the purposes of testing, examination, or analysis;

(*g*) take extracts from, or make copies of, any book, record, or document found on the premises that have a bearing on an inspection or investigation; or

(*h*) use any computer system or any other electronic device on the premises, or require the assistance of any person on the premises to use that computer system or electronic device, to—

(i) search any data contained in, or available to, the computer system or electronic device;

(ii) reproduce any record from the data;

(iii) seize any output from the computer or electronic device for examination and copying; or

(iv) attach and, if necessary, remove from the premises for examination and safeguarding any document, record, book, or article that has a bearing on an inspection or investigation.

(2) An inspector who removes any document, book, record, or article from any premises under subsection (1) (*e*) shall—

(*a*) issue a receipt for the document, book, record, or article to the owner of, or person in control of, the premises; and

(*b*) return the document, book, record, or article as soon as practicable after achieving the purpose for which it was removed.

(3) An inspector may, for purposes of—

(*a*) the execution of his or her duties under this Act, take with him or her a police officer if he or she has reasonable grounds to believe that he or she will meet serious obstruction in the execution of his or her duty; and

(*b*) enforcing the provisions of this Act, at any reasonable time, temporarily close a tourism establishment or temporarily suspend the licence of a tourism enterprise or tourism practitioner pending completion of investigation, disciplinary procedure, or legal proceedings where a gross violation of the provisions of this Act is reasonably suspected to have been committed.

Improvement and prohibition notices

41. Where an inspector has reasonable grounds to suspect that a tourism practitioner, a tourism enterprise or a tourism establishment is in violation of the provisions of this Act or the terms and conditions of its licence, may issue an improvement or prohibition notice in the manner prescribed in the *First Schedule*.

Register of guests

42.—(1) A tourism establishment providing accommodation services shall keep and maintain a confidential register of names of its guests and such other particulars as may be prescribed.

(2) A tourism establishment providing accommodation services shall—

(*a*) request each guest to write his or her name in the register together with such other particulars as may be prescribed; and

(*b*) present the register for inspection when so requested by an inspector or any other member of the Authority.

(3) A tourism establishment that contravenes this section shall be liable to an administrative penalty of K3,000,000.

(4) A guest who refuses to enter his or her details in the register or who provides false details, shall be refused the right of admission into the tourism establishment.

Returns

43.—(1) A tourism enterprise and a tourism establishment shall, by 14th day of every month, furnish a return of the previous month to the Authority.

(2) The return required under subsection (1) shall include such information as the Authority may prescribe from time to time but at the minimum, shall include a breakdown of guests, country of residence, total expenditure in foreign currency and local currency, and employment figures.

(3) A tourism enterprise or a tourism establishment that fails to furnish the Authority with the return required under subsection (1) shall be liable to administrative penalty of K3,000,000.

(4) The Minister may, by notice published in the *Gazette*, exempt any category of a tourism enterprise or tourism establishment from the application of the section.

Part VII—Disciplinary Matters

Establishment of a Disciplinary Committee of the Authority

44.—(1) There is hereby established a Disciplinary Committee of the Authority comprising three members, which shall deal with all matters relating to—

(*a*) discipline of tourism practitioners; and

(*b*) sanction of any tourism enterprise or tourism establishment.

(2) The Authority may appoint any person, irrespective of whether the person is a member of the Authority or not, to be a member of the Disciplinary Committee, provided that at least one member of the Disciplinary Committee shall be a member of the Authority.

(3) The chairperson of the Disciplinary Committee shall be appointed by the Authority from amongst the members of the Authority.

Functions of the Disciplinary Committee

45. The Disciplinary Committee shall—

(*a*) receive complaints referred to it by the Authority;

(*b*) investigate all complaints brought before it;

(*c*) conduct hearings on disciplinary matters; and

(*d*) make recommendations to the Authority on the action to be taken.

Powers of the Disciplinary Committee

46.—(1) The Disciplinary Committee shall have power to inquire into any matter or question referred to it by the Authority where a—

(*a*) tourism practitioner is convicted of an offence, which may disqualify him or her as a tourism practitioner under this Act;

(*b*) tourism practitioner is found guilty of conduct which may bring the profesion of tourism practitioner into disrepute; or

(*c*) tourism practitioner, tourism enterprise or tourism establishment may have contravened the provisions of this Act or any other law.

(2) For purposes of any inquiry, the Disciplinary Committee may take evidence and may—

(*a*) under the hand of the chairperson of the Committee, summon witnesses and require the production of any book, record, document or thing;

(*b*) through a Commissioner for Oaths, administer oath or affirmation to any person; and

(*c*) examine any book, record, document or thing produced by a witness.

(3) A summon for attendance before the Disciplinary Committee or for the production to it of any book, record, document, or thing shall be in a prescribed form.

Tenure and vacancy for Disciplinary Committee

47.—(1) A person appointed to the Disciplinary Committee shall hold office for a period of three years, unless the person—

(*a*) resigns;

(*b*) dies; or

(*c*) is removed by the Authority under subsection (3).

(2) At the expiry of a term of office of a member, the member may be eligible for reappointment for a further term of three years.

(3) A member of the Disciplinary Committee may be removed from office by the Authority, where the member—

(*a*) is not able to perform the functions of his or her office by reason of mental or physical infirmity certified by the medical practitioner;

(*b*) commits a misconduct;

(*c*) is declared bankrupt by a competent court of law;

(*d*) is absent, without valid excuse, from three consecutive meetings of the Disciplinary Committee of which he or she has had notice; or

(*e*) is convicted by a competent court of law of an offence which is punishable with imprisonment without an option of a fine.

Proceedings of Disciplinary Committee

48.—(1) Subject to other provisions of this Act, the Disciplinary Committee shall have power to regulate its own procedure.

(2) At any meeting of the Disciplinary Committee, all members must be present.

(3) All facts, matters or things authorised or required to be done by the Disciplinary Committee, shall be decided by a consensus and, where the consensus can not be achieved, majority vote at a meeting of the Committee.

(4) At all meetings of the Disciplinary Committee, each member shall have one vote on a question before the Committee and, in the event of equality of votes, the chairperson shall, in addition to a deliberative vote, have a casting vote.

(5) The Disciplinary Committee shall keep minutes of the proceedings of every meeting of the Disciplinary Committee.

(6) The Director General shall be the secretary to the Disciplinary Committee.

Notice of disciplinary proceedings

49.—(1) The Disciplinary Committee shall, in discharging its function under this Part—

(*a*) cause to be served upon a tourism practitioner, a tourism enterprise, or tourism establishment a notice setting out the allegations forming the basis of the disciplinary inquiry before it; and

(*b*) allow such person a reasonable opportunity of being heard either in person or, by a legal representative and to make representations, tender evidence, including through witness testimony.

(2) The Disciplinary Committee shall serve the notice under subsection (1) (*a*) not less than fourteen days before such person is invited for the hearing.

Part VIII—Malawi College of Tourism

Establishment of the College

50. There is hereby established a college known as the Malawi College of Tourism.

Objects of the College

51. The College shall undertake tourism, travel and hospitality training, capacity building for the tourism sector, and perform any other functions related or incidental to the foregoing as may be directed by the Minister.

Council of the College

52.—(1) There is established a Council of the College which shall be a body corporate with perpetual succession, and a common seal and subject to this Act, shall be capable, under its name, of—

(*a*) suing and being sued in its corporate name;

(*b*) acquiring and disposing of any moveable or immovable property;

(*c*) performing such functions and exercise such powers as are conferred by this Act or any other written law; and

(*d*) doing such things and perform such acts as bodies corporate may, by law, do or perform.

(2) The Council shall consist of eleven members comprising—

(*a*) six members, not being public officers, appointed by the Minister, as follows—

(i) two members representing registered national tourism associations; and

(ii) four members with knowledge or experience in matters relating to curriculum development or teaching in the tourism sector; and

(*b*) the following *ex-officio* members or their designated representatives—

(i) the Secretary responsible for tourism;

(ii) the Secretary to the Treasury;

(iii) the Secretary responsible for education;

(iv) the Director General of the Authority; and

(v) the Executive Director of TEVETA.

(3) The members of the Council other than *ex-officio* members, shall be appointed at different times so that the respective expiry dates of their terms of office shall fall at different times.

Functions of the Council

53.—(1) The Council shall—

(*a*) manage, control, and administer the assets of the College in such manner as best promoting the purpose for which the College is established;

(*b*) receive, on behalf of the College, donations, endowments, gifts, grants, or other monies and make disbursements to the College;

(*c*) approve the appointment criteria and the terms and conditions of service of staff of the College;

(*d*) certify persons working in the tourism sector who have obtained the necessary technical and ethical guidance that enables them to meet the needs of the tourism sector; and

(*e*) provide for the staff schemes and students' welfare.

(2) The Council may, by resolution delegate to a committee of the Council or a member, officer, employee, or agent of the Council, the exercise of any of the powers or, the performance of a function or a duty of the Council under this Act.

(3) The Minister may, in consultation with the Council, by notice published in the *Gazette*, make regulations as are necessary to carry out the purposes of this Part.

(4) Members of the Council shall be paid allowances determined by the Minister, in consultation with the Minister responsible for finance.

Powers of the Council

54.—(1) The Council shall, in the discharge of its functions, have power to—

(*a*) establish, with the approval of the Minister, such campuses or centres for training and capacity building as are necessary and in furtherance of the objectives of the College;

(*b*) fix, demand, and receive fees and other charges for services rendered;

(*c*) award qualifications including diploma and degree qualifications;

(*d*) regulate and supervise the discipline of students at the College;

(*e*) enter into association with other institutions of learning, within or outside Malawi, as the Council may consider necessary or appropriate and, in furtherance of the objectives of the College;

(*f*) make such rules as may be necessary for regulating the affairs of the College; and

(*g*) perform such other acts or things as the Council may consider necessary, conducive, or incidental to the objectives of the College.

Tenure of office

55.—(1) A member of the Council, other than an *ex-officio* member, shall hold office for a term of three years but shall be eligible for re-appointment for one further term of three years.

(2) A member of the Council, other than an *ex-officio* member may, at any time, resign from office in writing addressed to the Minister.

(3) A member of the Council, other than an *ex-officio* member, who is absent from three consecutive meetings of the Council without sufficient cause of which the member has had notice, shall cease to be a member.

(4) Where a member of the Council is, for sufficient cause, unable to act as a member, the Minister shall determine whether the inability would result in the declaration of a vacancy.

(5) Where there is a vacancy—

(*a*) under subsection (2) or (3);

(*b*) as a result of declaration under subsection (4); or

(*c*) by reason of the death of a member,

the Minister shall appoint another person in accordance with the provisions of section 52 (2) to fill the vacancy.

(6) A person shall be disqualified from appointment as a member of the Council under section 52 (2) (*a*) if he or she—

(*a*) ceases being a citizen or resident of Malawi;

(*b*) has, within the last seven years, been convicted by a competent court of an offence punishable with imprisonment without an option of a fine;

(*c*) holds a political office;

(*d*) is an officer, member, or employee of a public institution;

(*e*) is a minor;

(*f*) has been declared bankrupt;

(*g*) has a certified medical or physical condition that makes the person incapable of performing the functions of a member; or

(*h*) would, for any other reason, be disqualified by law from serving as a trustee or director of a company.

(7) The Minister may, in writing, suspend from office a member of the Council against whom criminal proceedings are instituted.

Conduct of meetings of the Council

56.—(1) The Council shall meet for the transaction of its business at least once in every three months at a place and a time as the Chairperson shall determine after consulting the Principal.

(2) The Chairperson shall convene ordinary meetings of the Council by giving the members at least fourteen days' written notice.

(3) The Chairperson may, on his or her own motion, convene an extraordinary meeting of the Council by giving at least three days written notice of the meeting which shall be held at a place and time as the Chairperson may, in consultation with the Principal, determine.

(4) The Chairperson shall convene an extraordinary meeting within seven days of receipt of a request, in writing, signed by not less than four members specifying the purpose for which the meeting is to be convened.

(5) The quorum at every meeting of the Council shall be constituted by seven members.

(6) The Chairperson or, in his or her absence, the Vice-Chairperson shall preside over all meetings of the Authority, and in the absence of both the Chairperson and the Vice-Chairperson, the members present and forming a quorum shall elect one of their number to preside over the meeting.

(7) A decision of the Council on any question shall be made by consensus but, where consensus is not possible, the decision shall be determined by a majority vote of members present and voting and, where there is an equality of votes, the Chairperson or, in the absence of the Chairperson, the Vice-Chairperon, or other member presiding, shall have a casting vote in addition to that person's deliberative vote.

(8) The proceedings of the Council shall not be invalidated by reason of a vacancy among the members or a defect in the appointment or qualification of a member.

(9) A member of the Council or a committee of the Council appointed under section 52 (2) (*a*), shall not attend a meeting of the Council by proxy and, where the member is unable to attend any meeting of the Council, he or she may request that an apology for failure to attend be recorded.

(10) The Principal shall record and keep minutes of meetings of the Authority and the minutes shall be confirmed at the subsequent meeting.

(11) The Principal may delegate this function to any other person.

(12) The Council shall determine its own procedure for meetings and may make rules to regulate its proceedings and business or the proceedings and business of any of its committees.

Principal of the College

57.—(1) The Council shall appoint the Principal of the College through a competitive process.

(2) A person shall not be qualified for appointment as the Principal under subsection (1) unless that person.

(*a*) holds Master's degree in tourism or a related discipline obtained from an education institution accredited or recognized by the National Council for Higher Education, subsequent to a bachelor's degree from an education institution accredited or recognized by the National Council for Higher Education; and

(*b*) has at least ten years' experience in tourism or a related sector including teaching and curriculum development.

(3) A person appointed to be the Principal under subsection (1) shall hold office for one term of three years but shall be eligible for re-appointment for a further one term of three years.

(4) The Principal shall be the chief executive officer of the College.

(5) Without prejudice to the generality of the foregoing, the Principal shall—

(*a*) be the academic and administrative head of the College;

(*b*) have overall responsibility for the direction, organization, administration, programmes, and courses of the College;

(*c*) be responsible to the Council for the general conduct and discipline of the staff and students; and

(*d*) have such other powers and duties as may be assigned by the Council.

Appointment of other staff

58. The Council may appoint such other staff, subordinate to the Principal, through an open and competitive process on such terms and conditions as it may consider appropriate and based on qualifications, experience, and capacity relevant to the functions of the College.

College Fund

59.—(1) There is hereby established a Fund to be known as the College Fund.

(2) The object of the Fund shall be to support and promote activities of the College.

(3) The College Fund shall vest in the Council and into which shall be paid—

(*a*) fees received from students;

(*b*) monies appropriated by Parliament;

(*c*) monies that may accrue to or vest in the College in the course of the furtherance of its objectives under this Act;

(*d*) monies generated by the College for providing consultancies and training and capacity building services;

(*e*) grants and donations received by the College for its activities;

(*f*) income derived from the investment of the funds of the College; and

(*g*) monies from any other sources, with the approval of the Minister responsible for finance, to the College.

(4) There shall be paid out of the College Fund any expenditure incurred by the College in the exercise of its powers or the performance of its functions under this Act.

(5) The College may, subject to the approval of the Minister responsible for finance, invest any funds not immediately required for its purposes, as it may determine.

Part IX—Tourism Development and Marketing Fund

Tourism Development Fund

60.—(1) There is hereby established a Fund to be known as the Tourism Development and Marketing Fund (in this Act otherwise referred as the "Tourism Fund").

(2) The object of the Tourism Fund shall be to support the promotion and development of tourism in Malawi.

Vesting of the Fund
No. 4 of 2022

61. The Fund shall vest in the Minister and shall, subject to this Act and the Public Finance Management Act, be administered in accordance with the written directions of the Minister.

Sources of funds of the Fund

62. The Toursim Fund shall consist of—

(*a*) such sums as may be payable to the Fund from moneys appropriated by the Parliament;

(*b*) such sums from levies on selected products and services, as may be administered under this Act;

(*c*) concession fees from properties owned by the Ministry of Tourism;

(*d*) fees, rates, and penalties from practitioners, enterprises and tourism establishments;

(*e*) funds from sale of merchandise;

(*f*) grants, donations or contributions from individuals or institutions within the country; and

(*g*) grants, donations or contributions from foreign governments international agencies, development partners, external bodies or individuals.

Holding of the Fund
No. 4 of 2022

63.—(1) All sums received for the purposes of the Fund shall be paid into a bank account and no amount shall be withdrawn there from, except in accordance with the Public Finance Management Act.

No. 4 of 2022

(2) Subject to the Public Finance Management Act, any part of the Fund not immediately required for the purposes of the Fund may, on the recommendation of the Minister responsible for finance, be invested in a manner the Minister determines appropriate.

Part X—Offences

False and misleading statements

64. A person who—

(*a*) makes a false or misleading statement, knowing such statement to be false or misleading in an application for registration as a tourism practitioner;

(*b*) makes a false or misleading statement, knowing such statement to be false or misleading in an application for registration as a tourism enterprise or establishment under this Act; or

(*c*) destroys or damages a register kept under this Act,

commits an offence and shall, upon conviction, be liable to a fine of K50,000,000 and to imprisonment for ten years and in the case of a continuing offence, to a further fine of K100,000 each day during which the offence continues.

Obstruction of inspectors or any designated persons

65.—(1) A person who—

(*a*) assaults, threatens, or obstructs an inspector in the performance of the inspector's functions;

(*b*) refuses to give an inspector such reasonable assistance as the inspector may require for the purpose of exercising the inspector's powers;

(*c*) gives an inspector false or misleading information in answer to an inquiry made by the inspector; or

(*d*) impersonates an inspector or presents oneself to be an inspector,

commits an offence.

(2) For the purpose of this section, a person shall be deemed to have obstructed an inspector in the execution of his or her duties under this Act if he or she—

(*a*) delays an inspector in the exercise of any power under this Act;

(*b*) fails to comply with the requisition of an inspector in pursuance of this Act;

(*c*) fails to produce any register, certificate, notice, or documents which he is required, in pursuance of this Act, to produce;

(*d*) withholds a commodity, or method or procedure for the manufacture or preparation of a commodity; or

(*e*) conceals or prevents, or attempts to conceal or prevent a person from appearing before or being interviewed by an inspector.

Impersonation

66. Any person who falsely holds himself out to be—

(*a*) a member of the Authority, an employee of the Authority, or a person authorised by the Authority; or

(*b*) a licensee, an employee of a licensee, or a person authorised by the licensee,

commits an offence and shall, upon conviction, be liable to a fine of K20,000,000 and to imprisonment for four years.

Failure to comply etc.

67. Any person who—

(*a*) fails to comply with an order, directive, or public notice issued by the Authority in the exercise of its functions under this Act;

(*b*) refuses, or fails to produce any document or other information relating to tourism and hospitality services or products, which may be required to be produced under this Act;

(*c*) without reasonable grounds for believing the same to be true, provides to the Authority a document or other information that is false or misleading in any material aspect, whether upon demand or otherwise;

(*d*) publishes or otherwise discloses any information in contravention of this Act;

(*e*) hinders the Authority from carrying out any of its functions under this Act;

(*f*) refuses or fails to comply with any order, prohibition, direction, demand, requirement, or notice lawfully made, served, published, or otherwise given under this Act,

commits an offence and shall, upon conviction, be liable to a fine of K50,000,000 and to imprisonment for ten years.

Contempt of Disciplinary Committee

68. Where person licensed under this Act, is summoned by the Disciplinary Committee—

(*a*) refuses or fails without sufficient cause to attend and give evidence relevant to the case or inquiry at the time and place specified in the summons; or

(*b*) refuses to be sworn or to affirm;

(*c*) refuses or fails without sufficient cause to produce any book, record, document, or thing which he has been required by that summons to produce; and

(*d*) gives false evidence on oath at an inquiry before the Disciplinary Committee knowing such evidence to be false or not believing it to be true,

commits an offence and shall, upon conviction, be liable to a fine of K10,000,000 and to imprisonment for two years.

False rating

69. A person who falsely presents his or her tourism establishment as rated higher than it actually is rated by the Authority or as rated when the same is not rated by the Authority commits an offence and shall, upon conviction, be liable to a fine of K30,000,000 and to imprisonment for six years.

Pollution

70. A person registered under this Act who—

(*a*) discharges any substances or oil into a designated tourism development area contrary to the provisions of this Act or any other law; or

(*b*) pollutes wildlife habitat and ecosystem, or discharges any pollutant detrimental to the environment contrary to the provisions of this Act or any other law,

commits an offence and shall, upon conviction, be liable to a fine of K50,000,000 and imprisonment for ten years.

Failing to collect or remit levy etc

71. A person in the tourism industry or sector and or registered under this Act who fails or refuses to pay any levy or to collect or remit any levy in terms of this Act commits an offence and shall, upon conviction, be liable to a fine of K10,000,000 and to imprisonment for two years.

Demanding a gift or payment greater than the price specified from a tourist

72.—(1) A person who begs a tourist to give a gift to the person in the form of money or any other item of value, or pesters a tourist to give any favor to the person, commits an offence.

(2) A person who offers any item for sale to a tourist or renders any service for reward to a tourist and subsequently demands payment of a greater amount than the price specified at the time the item or service was offered for sale to the tourist, commits an offence.

(3) A person who performs any act for reward upon being requested to do so by a tourist and subsequently demands payment of a greater amount than the price agreed with the tourist before performance of the act, commits an offence.

(4) A person who voluntarily gives any item as a gift to a tourist or performs any act on own volution for the benefit of a tourist or voluntarily renders a service to a tourist without prior agreement that the service or item is being offered for reward and subsequently demands payment for the item, act or service, commits an offence.

(5) A person convicted of an offence under this section shall be liable to a fine of K5,000,000 and to imprisonment for one year.

Offences by body corporate

73. Where an offence under this Act is committed by a body corporate, every director or manager of the body corporate shall be liable as if the director or manager had personally committed the offence, unless the director or manager proves to the satisfaction of the court that the act constituting the offence was done without the knowledge, consent or connivance of the director or manager or that the director or manager took reasonable steps to prevent the commission of the offence.

General penalty

74. A person who commits an offence under this Act for which no punishment has been provided for in this Act shall, upon conviction, be liable to a fine of K10,000,000 and to imprisonment for two years.

Administrative penalties

75.—(1) Where the Authority is satisfied, on reasonable grounds, that a person has contravened this Act, the Authority may impose administrative penalties on the person or the tourism establishment by doing one or more of the following—

(*a*) issuing a written warning;

(b) directing the person or tourism establishment to do a specified act, or refrain from doing a specified act;

(*c*) directing the person or tourism establishment to remedy the effects of the contravention;

(*d*) directing the person or tourism establishment to compensate the person or entity that has suffered loss as a result of the contravention;

(*e*) ordering the person to pay a monetary penalty, not exceeding K10,000,000;

(*f*) suspension or revocation of a licence; or

(*g*) any other penalty as the Authority may deem appropriate.

(2) Where the Authority has revoked a licence of a person or tourism establishment, the Authority shall strike off the name of the person or tourism establishment from the register.

(3) A person or tourism establishment on whom an administrative penalty has been imposed and fails or refuses to comply with an order made under subsection (1), shall be liable to a monetary penalty.

(4) Where administrative penalty imposed by the Authority is a monetary penalty and the person on whom the monetary penalty has been imposed does not pay for a period of more than thirty days from the date of the first demand, in writing, by the Authority, the amount in respect of the monetary penalty shall be recoverable by the Authority as a civil debt.

Part XI—Miscellaneous

Disclosure of conflict of interest

76.—(1) Where a member of the Authority or Council or Committee of the Authority or Council, co-opted person, or any advisor of the Authority or Council is present at a meeting of the Authority or Council or at which any matter which is the subject of consideration is a matter in which the member, the co-opted person, or the advisor has an interest, he shall, as soon as practicable, after the commencement of the meeting, disclose his or her interest and

shall not take part in any consideration or discussion of, or vote in, any question relating to the matter.

(2) A disclosure of conflict of interest under this section shall be recorded in the minutes of the meeting at which it is made.

(3) A person who contravenes subsection (1) shall cease to be a member of the Authority or the Council or committees of the Authority or the Council, or advisor of the Authority or the Council.

(4) For purposes of this section, a person has an interest where his or her family member, professional, or business partner has a direct or indirect financial or other interest.

Oath of secrecy

77. Every—

(*a*) member of the Authority or Council;

(*b*) member of the committee of the Authority or Council;

(*c*) co-opted person attending a meeting of the Authority or Council or any committees of the Authority or Council; and

(*d*) member of staff or service provider of the Authority or Council or authorized person,

shall, upon assumption of office, take an oath of secrecy in the form set out in the *Second Schedule* to this Act and the oath shall be administered by a Commissioner for Oaths.

Protection from liability

78.—(1) Every member of the Authority or the Council, member of a committee of the Authority or the Council, member of staff, or other employee of the Authority or the Council shall not in his personal capacity, be liable in civil or criminal proceedings in respect of any act or omission done in good faith in the performance of his functions under this Act.

(2) Where, in any proceedings, a question arises on whether or not an act or omission was done in good faith in the course of carrying out the provisions of this Act, the burden of proving that the act was not done in good faith in the course of carrying out the provisions of this Act shall be on the person alleging that it was not so done.

Regulations

79.—(1)The Minister may make regulations for implementing the provisions of this Act and prescribing all matters which are necessary or contingent to be prescribed for the better carrying out or giving effect to the provisions of this Act.

(2) Without prejudice to the generality of subsection (1), the regulations may make provision for—

(*a*) fees and or levies payable under this Act;

(*b*) forms for applications;

(*c*) requirements for licences and approvals;

(*d*) classification or reclassification and grading of tourism products and services;

(*e*) procedures for the conduct of investigations and determination of complaints;

(*f*) returns to be submitted to the Authority; and

(*g*) any matter necessary for the effective implementation of the provisions of this Act.

Cap. 1:01

(3) Notwithstanding the provisions of section 21(*e*) of the General Interpretation Act, the Regulations made pursuant to this section may provide for fines of up to K25,000,000 and to imprisonment of up to five years.

Code of ethics and standards of tourism practice

80. The Authority shall prescribe a code of ethics and standards for tourism establishments, tourism enterprises, and tourism practitioners.

Tourism priority areas, and designated areas for tourism development

81.—(1) The Minister may, in consultation with relevant Ministers, cause to be carried out studies and surveys designed to identify priority areas for tourism development.

(2) The Minister may, by notice published in the *Gazette*, declare, such areas identified under subsection (1) as tourism priority areas, tourism designated areas, tourism services sites for community-based tourism, or tourism research areas for tourism development.

(3) The Minister shall collaborate with the relevant authorities in the development of a tourism area as listed in subsection (1), where an area for tourism development falls within a protected area or has been declared as a protected area under the Forestry Act, or the National Parks and Wildlife Act.

Cap. 63:01
Cap. 66:07

(4) The Minister shall cause to be prepared local, district, and national plans for the development and promotion of areas declared in accordance with subsection (1).

Levy

82. The Minister may, after consulting with the Minister responsible for finance, impose levies on tourism practitioners, tourism establishments, and tourism enterprises as the Minister may determine from time to time.

Part XII—Repeal and Savings

Repeal and Savings
Cap. 50:01

83.—(1) The Tourism and Hotels Act is hereby repealed.

(2) Any subsidiary legislation made under the Tourism and Hotels Act repealed by subsection (1), in force immediately before the commencement of this Act shall remain in force, unless in conflict with this Act and shall be deemed to have been made under this Act.

Status of existing assets, funds, liabilities, etc

84.—(1) All property, assets, funds, liabilities, obligations, agreements, and other arrangements which, immediately before the commencement of this Act were vested in, acquired by, incurred by, entered into by, and on behalf of, the Tourism and Hotels Board established under the repealed Act shall, on the commencement of this Act, be deemed to have vested in or to have been acquired, incurred or entered into by or on behalf of the Authority, and shall become enforceable by or against the Authority to the same extent as they were enforceable by or against the Board.

(2) Where the transfer of any property, assets, funds, liabilities, obligations, agreements, and other arrangements referred to in subsection (1) is required by any written law to be registered, the Authority shall, within twelve months of the commencement of this Act or within such other period as the written law may prescribe, apply to the appropriate registering authority for the registration of the transfer and thereupon the registering authority shall, at no cost to the Authority or any person by way of registration fees, stamp or other duties—

(*a*) make such entries in the appropriate register as shall give effect to the transfer;

(*b*) where appropriate, issue to the Authority a certificate of title or other statutory evidence or ownership of the property or make such amendments on such certificates or in the appropriate register as may be necessary; and

(*c*) make any necessary endorsement on such deeds or other documents as may be presented on such registering authority relating to the title, right, or obligation concerned.

Existing members

85. Members of the Tourism and Hotels Board, as constituted immediately before the coming into force of this Act, shall continue to hold office as members until the appointment of new members in accordance with this Act.

Status of existing registrations

86.—(1) Subject to subsection (2), every person who, immediately before the commencement of this Act, was registered in the register of tourism practitioners under the repealed Act and is resident in Malawi shall be deemed to have been registered under this Act in that register on such conditions as the Authority may impose.

(2) A person deemed by subsection (1) to be registered under this Act shall submit to the Director General particulars of his registration in such form as may be prescribed and, subject to payment of the prescribed fee, shall be entitled to be issued with a practising licence under this Act.

(3) All premises that, immediately before the commencement of this Act, were registered in the register of premises under the Act

repealed by section 83, shall be deemed to have been registered under this Act in that register.

(4) A permit or licence issued, immediately before the commencement of this Act, under the repealed Act, shall be deemed to have been issued under this Act.

Ceasation of Malawi Institute of Tourism Cap. 5:03

87. On the commencement of this Act, the Malawi Institute of Tourism incorporated under the Trustees Incorporation Act, shall cease to exist.

Transition

88. Any certificate issued, immediately before the commencement of this Act, by Malawi Institute of Tourism shall, unless otherwise expressly provided for in this Act or in any other written law, continue to be in force and be deemed to have been issued or granted by the Malawi College of Tourism.

Legal proceedings

89. Any legal proceedings commenced immediately before the coming into force of this Act by or against the dissolved Malawi Institute of Tourism shall be deemed to have been commenced by or against the Malawi College of Tourism established under this Act.

Transfer of assets, funds, liabilities

90.—(1) All property, funds, and assets which immediately before the commencement of this Act were vested in the dissolved Malawi Institute of Tourism shall, on the commencement of this Act, and without further assurance, be deemed to have vested in or to have been acquired by or on behalf of the Malawi College of Tourism established under this Act, subject to all interests, liabilities, charges, obligations, and trusts affecting such property, funds, and assets.

(2) Except as otherwise provided in subsection (1), in relation to property, funds, and assets, all debts, obligations, liabilities, agreements, and other arrangements existing at the commencement of this Act and vested in, acquired, incurred or entered into by or on behalf of the dissolved Malawi Institute of Tourism shall, on the commencement of this Act, be deemed to have vested in or to have been acquired, incurred or entered into by or on behalf of the Malawi College of Tourism established under this Act, and shall become enforceable by or against the Malawi College of Tourism to the same extent as they were enforceable by or against the dissolved Malawi Institute of Tourism.

Transfer of employees

91. All persons who, immediately before the commencement of this Act, were employed by the dissolved Malawi Institute of Tourism, on the commencement of this Act, be deemed to have been transferred to the employment of the Malawi College of Tourism, established under this Act, on terms and conditions of service not less favourable than the terms and conditions of service with the

dissolved Malawi Institute of Tourism and, for the purpose of determining their rights thereunder, their services shall be regarded as being continuous from the time they were employed by the dissolved Malawi Institute of Tourism.

FIRST SCHEDULE (s. 41)

IMPROVEMENT AND PROHIBITION NOTICES

Circumstances and manner of service

Application of this Schedule

1. This *Schedule* shall apply to an activity which is being or are about to be carried on by or under the control of any person, being activities to or in relation to which this Act or the regulations made thereunder apply or will, if the activities are so carried on, apply.

Improvement Notice

2. Where an inspector is of the opinion that a person—

   (*a*) is contravening a provision of this Act or regulations made thereunder; or

   (*b*) has contravened a provision of this Act in circumstances that make it likely that the contravention will continue or be repeated,

he may serve on him a notice (referred to as "an improvement notice") stating that he is of that opinion, specifying the provision in respect of which he is of that opinion, giving particulars of the reasons why he or she is of that opinion and requiring that person to remedy the occasioning within a period within which an appeal against the notice can be brought under section 5 of this schedule as may be specified in the notice.

Prohibition notice

3. If as regards any activity to which this clause applies an inspector is of the opinion that, as carried on or about to be carried on by or under the control of the person in question the activity involve or, as the case may be will involve immediate health, environmental risk or serious personal injury, the inspector may serve on that person a notice (in this part referred to as "a prohibition notice").

Contents of the prohibition notice

4.—(1) A prohibition notice shall—

   (*a*) state the opinion of the inspector;

   (*b*) specify the matters which, in his opinion, give or as the case may be, will give rise to the said risk;

(*c*) where in his opinion any of those matters involve or, as the case may be, will involve a contravention of any provision of this Act or the regulations made thereunder, state that he is of that opinion, specify the provision or provisions in respect of which he is of that opinion and give particulars of the reasons why he is of that opinion; and

(*d*) direct that the activities to which the notice relates shall not be carried on by or under the control of the person on whom the notice is served unless the matters specified in the notice in pursuance of paragraph (*b*) and any associated contravention of provisions so specified in pursuance of paragraph (*c*) have been remedied.

(2) A direction given under subsection 3 (2) (*d*) shall take immediate effect if the inspector is of the opinion, and states, that the risk to safety, health, or environment, is or, as the case may be, will be imminent, and shall have effect to the end of a period specified in the notice in any other case.

(3) A notice may contain directions as to the measures to be taken to remedy any contravention or matter to which the notice relates and any such directions—

(*a*) maybe framed to any extent by reference to any regulation or technical specification approved by the Authority; and

(*b*) may be framed so as to give the person on whom the notice is served a choice regarding ways of remedying the contravention or matter.

Withdrawal or extension of notice

5. Where an improvement notice or prohibition notice which is to take immediate effect has been served—

(*a*) the notice may be withdrawn by an inspector at any time before the end of the period specified therein, if the risk to safety, health, or environment has been remedied; or

(*b*) the period so specified may be extended by an inspector at any time when an appeal against the notice is not pending.

Appeal against a notice

6.—(1) A person on whom a notice is served may, within fourteen days from the date of its service, appeal to the Minister, and on such appeal, the Minister may either cancel or affirm the notice and, in affirmation, the Authority, may do so either in the notice's original form or with such modification as the Minister may in the circumstances deem fit.

(2) Where an appeal under this clause is brought against a notice within the period allowed under subsection (1) then—

(*a*) in the case of an improvement notice, the lodging of the appeal shall have the effect of suspending the operation of the notice until the appeal is

finally disposed of or, if the appeal is withdrawn, until the withdrawal of the appeal; or

(*b*) in the case of a prohibition notice, the lodging of the appeal shall have the like effect if, but only if, on the application of the appellant, the Authority so directs; and then only from the giving of the direction.

SECOND SCHEDULE (s. 77)

Oath of Secrecy

I, ……having been appointed as an employee of the Authority/Council do solemnly swear that I will faithfully discharge, to the best of my ability, the duties of my present position; that I have read and clearly understood, and I will abide by, the guidelines governing the Authority and such issuances by the Authority/Council; that I will not, directly, or indirectly divulge the business or proceedings of the Authority/Council or the nature or contents of any document communicated to me any matter coming to my knowledge in my capacity as an employee of the Authority/Council; that I impose these obligations upon myself voluntarily, without mental reservation or purpose of evasion; and that I will and truly perform the functions and duties of my office. So, help me God/Allah.

SWORN at..... .....
Signature of Deponent

This ..... day of ....., 20 .....

Before me: .....
Commissioner for Oaths

Passed in Parliament this eighth day of April, two thousand and twenty-five.

Fiona Kalemba
Clerk of Parliament